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Opinion & Ownership

ADVOCATE

LEGAL SCRUTINY REPORT

To
M/s.Clix Capital Services Private Limited.,
Chennai.

Ref.No.SCHHLMO000767559

Applicant's Name: Mr.Rahul Raj

Property Owner Name: Mrs.Swathi (wife of Mr.Rahul Raj)

I. Property Address:

All that Piece and parcel of Land and building, bearing Plot No.A, (Sub-Division approved by Commissioner, Tambaram Municipality vide S.D.No.8/15 in No.190/15, dated 05.05.2015), Comprised in S.No.188/2A1C2, T.S.No.66, Ward No.F, Block No.4, measuring with an extent of 410 Sq.Ft., UDS out of 2350 Sq.Ft., out of 4800 Sq.Ft., together with Residential Flat bearing No.F1, in the First Floor, West Entrance Facing, having a Plinth area of 852 Sq.Ft., (inclusive of common area and one covered Car Park No.3, Situated at Chelliamman Koil 2nd Cross Street, Irumbuliyur Village, Tambaram Taluk, Kancheepuram District and bounded on the

North by : Plot No.B

South by : Plot belongs to Mr.Krishnan

East by : 20 Feet Wide Road

West by : Heerabai Vagaiyara Property

Measuring

East to West on the Northern Side : 105 Feet 9 Inches

East to West on the Southern Side : 105 Feet 6 Inches

North to South on the Eastern Side : 22 Feet 3 Inches

North to South on the Western Side : 22 Feet 3 Inches

Situated within the Sub-Registration District of Tambaram Joint I and in the Registration District of Tambaram.

II. LIST OF PHOTOCOPY OF THE DOCUMENT EXAMINED:

Sl.No.	Date	Documents	Survey No & Extent
1.	22.01.2007	Sale Deed executed by Mr.Manickam to in favour of Mr.Subramania Naicker (Doc.No.406/2007)	S.No.188/2A1C2 – 4800 Sq.Ft.,
2.	18.04.2013	Tambaram Town Survey Field Register Extract in the name of Mr.Subramania Naicker issued by Head Quarters Deputy Tahsildar of Tambaram Taluk	Old S.No.188/2A1C2, New T.S.No.66, Ward No.F, Block No.4 – 4706 Sq.Ft.,
3.		Online Joint Extract from the TSLR in the name of Mr.Subramania Naicker, Mrs.Swathy & Mr.Rahul Raj issued by the Tambaram Taluk	Old S.No.188/2A1C2, New T.S.No.66,

			Block No.4, Ward F – 4706 Sq.ft,
4.	26.06.2013	Settlement Deed executed by Mr.Subramanian to in favour of his son Mr.Dayalan (Doc.No.3696/2013)	S.No.188/2A1C2, New T.S.No.66 – 4800 Sq.Ft.,
5.	24.12.2014	GPA Deed executed by Mr.Dayalan to appoint Mr.Chandrasekaran as a lawful Power Agent (Doc.No.9417/2014)	S.No.188/2A1C2, New T.S.No.66 – 4800 Sq.Ft.,
6.	05.05.2015	Sub-Division of Plan & Approval Order No.S.D.No.8/15 in No.190/15 in the name of Mr.Chandrasekaran issued by the Commissioner, Tambaram Municipality	S.No.188/2A1C2, New T.S.No.66 – Plot No.A – 2350 Sq.ft., & Plot No.B – 2343 Sq.Ft.,
7.	02.06.2015	Building Plan and Approval Order No.247/15 in No.235/15 in the name of Mr.Chandrasekaran issued by the Commissioner, Tambaram Municipality	S.No.188/2A1C2 – Plot No.A – 2350 Sq.ft,
8.	21.02.2018	**Original** Construction Agreement entered between M/s.JRC Constructions along with Mrs.Arthi (Doc.No.982/2018)	Flat No.F1, in the First Floor, Entrance Facing West, having its Built up area of 852 Sq.Ft., along with Car Parking marked as No.3,
9.	26.02.2018	**Original** Sale Deed executed by Mr.Chandrasekaran as a Power agent of Mr.Dayalan to in favour of Mrs.Arthi (Doc.No.1058/2018)	S.No.188/2A1C2, New T.S.No.66 - 410 Sq.Ft., UDS out of 2350 Sq.Ft., out of 4800 Sq.Ft., bearing Plot No.A
10.	01.03.2018	**Original** MODT Deed executed by Mrs.Arthi to in favourof M/s.LIC Housing Finance Limited (Doc.No.1124/2018)	
11.	27.02.2025	**Original** Receipt Deed executed by M/s.LIC Housing Finance Limited to in favour of Mrs.Arthi (Doc.No.1497/2025)	
12.	27.02.2025	**Original** Settlement Deed executed by Mrs.Arthi to in favour of her sister Mrs.Swathi (Doc.No.1498/2025)	S.No.188/2A1C2, T.S.No.66, Ward No.F, Block No.4, - 410 Sq.Ft., UDS out of 2350 Sq.Ft., out of 4800 Sq.Ft., - Plot No.A with Flat No.F1, in the First Floor, West Entrance Facing, having a Plinth area of 852

			Sq.Ft., (inclusive of common area and one covered Car Park No.3,
13.	26.02.2025	Property Tax Receipt in the name of Mr.Dayalan for the period from 2023 to 2025	Flat No.F1

III. Legal Opinion Text:

I have perused the documents listed in Annexure given hereunder in respect of the above mentioned property

The said schedule mentioned Property, Comprised in S.No.188/2A1C2, measuring with an extent of 4800 Sq.Ft., Situated at Chelliamman Koil Street, 2nd Cross Street, Irumbuliyur Village,, was originally owned and possessed by one Mr.Subramania Naicker through his self-acquired property under a Sale Deed vide dated 22.01.2007 and registered as Document No.406 of 2007 and being purchased from Mr.Manickam.

After the said purchase it appears that mutation of Revenue records took place in the name of Mr.Subramania Naicker and he has obtained the Tambaram Town Survey Field Register Extract dated 18.04.2013 issued by the Head Quarters Deputy Tahsildar of Tambaram Taluk & Online Joint Extract from the TSLR in the name of Mr.Subramania Naicker, Mrs.Swathy & Mr.Rahul Raj issued by the Tambaram Taluk in respect of the property comprised in Old S.No.188/2A1C2 has been sub divided has New T.S.No.66, Ward No.F, Block No.4 measuring to an extent of 4706 Sq.Ft., will proves it.

The aforesaid Mr.Subramanian has settled the property comprised in S.No.188/2A1C2, New T.S.No.66 measuring with an extent of 4800 Sq.Ft., to and in favour of his son Mr.Dayalan, under a Settlement Deed vide dated 26.06.2013 registered as Document No.3696 of 2013.

It appears that Mr.Dayalan has executed a General Power of Attorney for the above said property, comprised in S.No.188/2A1C2, New T.S.No.66, measuring with an extent of 4800 Sq.Ft., to appoint Mr.Chandrasekaran as a lawful Power Agent to do various acts and deeds including sale of the same, under a General Power of Attorney Deed vide dated 24.12.2014 and registered as Document No.9417 of 2014.

The above said Mr.Chandrasekaran has sub divided the above said land into various residential plots under the Sub Division Plan, being sanctioned and approved by the Commissioner, Tambaram Municipality vide Sub Division Approval No.S.D.No.8/15 in No.190/15 dated 05.05.2015 vide Plot No.A measuring to an extent of 2350 Sq.ft., & another Plot.

On a perusal of Building Plan & Approval Order No.247/15 in No.235/15 dated 02.06.2015 issued by the Commissioner, Tambaram Municipality it appears that Mr.Chandrasekaran has got permission for the proposed construction of Residential Building of in respect of the S.No.188/2A1C2, measuring to an extent of 2350 Sq.ft., bearing Plot No.A.

Whereas M/s.JRC Constructions has entered into a Construction Agreement vide dated 21.02.2018 and registered as Document No.982 of 2018 with one Mrs.Arthi, for the construction of residential Flat bearing No.F1, in the First Floor, Entrance Facing West, having its Built up area of 852 Sq.Ft., along with Car Parking marked as No.3.

The said Mr.Chandrasekaran as a Power agent of Mr.Dayalan has sold and conveyed extent of 410 Sq.Ft., UDS out of 2350 Sq.Ft., out of 4800 Sq.Ft., in S.No.188/2A1C2, T.S.No.66, bearing Plot No.A to and in favour of Mrs.Arthi under a Sale Deed dated 26.02.2018 registered as Document No.1058 of 2018.

Whereas Mrs.Arthi has availed a loan from M/s.LIC Housing Finance Ltd., and on the security she has mortgaged the above said Property with M/s.LIC Housing Finance Ltd., and she has executed a MODT Deed dated 01.03.2018 registered as Document No.1124 of 2018 and subsequently cancelled the same by a Discharge Receipt dated 27.02.2025 registered as Document No.1497 of 2025.

The aforesaid Mrs.Arthi has settled the property bearing Plot No.A, Comprised in S.No.188/2A1C2, T.S.No.66, Ward No.F, Block No.4, measuring with an extent of 410 Sq.Ft., UDS out of 2350 Sq.Ft., out of 4800 Sq.Ft., along with Flat bearing No.F1, in the First Floor, West Entrance Facing, having a Plinth area of 852 Sq.Ft., (inclusive of common area and one covered Car Park No.3 to and in favour of her sister Mrs.Swathi, under a Settlement Deed vide dated 27.02.2025 registered as Document No.1498 of 2025.

Mr.Dayalan had paid the Property Tax for the period from 2023 to 2025 vide Receipt dated 26.02.2025 for the said Property in his name.

IV. Certificate:

On the strength of the documents I am of the opinion that **Mrs.Swathi** has clear and marketable title on the property, the absolute owners of the schedule property mortgage if created will be perfect and available to the M/s.Clix Capital Services Private Limited for the liabilities of the Borrower.

The mortgage of Schedule Property can be enforced (if required) under the provisions of the Securitization and Reconstruction of Financial Assets and Enforcement of Securities Act, 2002 and amendments thereto ("SARFAESI") by CLIX CAPITAL.

Opinion & Ownership

Note : EC with barcode from 01.01.1987 to till date is required for Flat No.F1.

ANNEXURE

IV Following documents needs to be submitted prior to disbursal of loan: -

All the photocopies of the documents mentioned in Clause No.II above.

Sl.No	Date	Documents	Original/ Photocopy
1	21.02.2018	Construction Agreement entered between M/s.JRC Constructions along with Mrs.Arthi (Doc.No.982/2018)	**Original**
2.	26.02.2018	Sale Deed executed by Mr.Chandrasekaran as a Power agent of Mr.Dayalan to in favour of Mrs.Arthi (Doc.No.1058/2018)	**Original**
3.	01.03.2018	**Original** MODT Deed executed by Mrs.Arthi to in favourof M/s.LIC Housing Finance Limited (Doc.No.1124/2018)	**Original**
4.	27.02.2025	**Original** Receipt Deed executed by M/s.LIC Housing Finance Limited to in favour of Mrs.Arthi (Doc.No.1497/2025)	**Original**
5.	27.02.2025	Settlement Deed executed by Mrs.Arthi to in favour of her sister Mrs.Swathi (Doc.No.1498/2025)	**Original**

Thanking You
Yours Faithfully,

M.RAJA
ADVOCATE
Place: Chennai
Dated: 25.02.2025

M Raja Advocate

Digitally signed by M Raja Advocate
DN: cn=M Raja Advocate, o=Opinion & Ownership, ou=Legal, email=rajaadv@gmail.com, c=IN
Date: 2025.03.05 15:26:27 +05'30'

Note: All the connected papers/documents perused by us are returned herewith.